



Fostering Second Chances and Reducing Recidivism: Examining New Leash on Life USA's
Young Adult Reentry and Diversion Program
1-Year Recidivism Outcomes for YARD 3 & YARD 4

Prepared for: New Leash on Life, USA
Prepared by: Kathleen Powell, PhD
Assistant Research Professor, Drexel University
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Executive Summary

Researchers from Drexel University (Kathleen Powell, PhD and Jordan Hyatt, JD, PhD – from the Department of Criminology and Justice Studies and the Center for Public Policy) have partnered with NL and additional stakeholders, including the Office of the District Attorney of Philadelphia (DAO) and the Defender Association of Philadelphia to collaboratively generate preliminary, evidence-based insight into participant outcomes following participation in and completion of the YARD diversion and early parole program. This report describes one component of a broader program examining participants in a diversion program – specifically, the Young Adult Reentry and Diversion program (YARD, hereafter) operated by New Leash on Life USA (NL).

This report presents findings from the recidivism analysis component of the project that used administrative court record data integrated with NL program record data to examine participants' criminal history backgrounds, program completion, and 1-year outcomes of rearrest and new court cases using descriptive and bivariate statistical analyses. The analysis featured information on participants enrolled in YARD during 2022 in the 3rd and 4th cohorts.

Key findings include the following:

1. The program is serving the target group of young men of color at risk of gun violence as evidenced by the high proportion of participants identifying as Black and facing firearm-related charges.
2. The average time between court case filing and program enrollment is quite long – just over 8.5 months. This duration represents a substantial time lapse between the initiation of formal court proceedings and the start of program services.
3. While most participants successfully complete the program, there were some suggestive differences that indicated that individuals facing a high volume of charges and entering the program at a younger age may be less likely to successfully complete the program.
4. 82% of participants successfully completing the program receive a nolle prossed case disposition, which signals eligibility for the Defender Association to file for expungement and that a core diversionary objective is fulfilled for most participants.
 - a. However, 4 successful completers still entered guilty pleas in their cases – a concerning disposition for those successfully making it through the program.
5. Recidivism in the form of a new arrest or a new court case with a disposition is uncommon: only 5.9% of participants, all of whom successfully completed the program, experience a new arrest or new case in the year following their completion of the YARD program.

Introduction

Currently, policymakers and practitioners are seeking to implement practices in the criminal justice system that respond to criminal behavior in a manner that balances the maintenance of public safety without increasing the use of secure confinement. Further, system practitioners are challenged by pressures to effectively respond to increases in violence driven by societal disruptions prompted by the COVID-19 pandemic. One potential solution to both policy challenges is to expand the use of diversion. Broadly, diversion broadly refers to the conditional cessation of traditional formal court processing and the realignment of them towards alternative programs that, if successfully completed, result in case dismissal and record expungement. These programs often include cases defined by a mix of criteria reflecting the case's severity and the individuals' system involvement history. Their successful use can prevent the stigmatization of formal processing, conviction, and record conferral while offering participants a path to supportive services that address their underlying needs that precipitated their system involvement.

New Leash on Life USA and its YARD Program

This specific project focuses on the Young Adult Diversion and Reentry (YARD, hereafter) program facilitated by New Leash on Life USA (NL, hereafter). NL's organizational mission is to stop the cycle of incarceration by providing tailored, whole-person services to give participants the opportunity to successfully reenter society, gain employment, become productive members of their communities and reunite with their families. Their YARD program delivers diversion and reentry services to primarily young adults (ages 18 to 24). Most participants are Black and/or Latino and enter the program via two possible pathways – through release on early parole into the NL program or diversion from formal charging and a potential jail sentence. YARD is specifically designed to reduce gun violence by engaging high-risk young adults with first-time weapon possession cases and reducing the underlying causes of this behavior. This model generates benefits for safety at the individual, community, and city level.

Program enrollment is a collaborative process that involves the coordination of numerous stakeholders, including the Defender Association of Philadelphia (DAP, hereafter)¹, Adult Probation and Parole, and the DA's Office (DAO, hereafter). This team approach provides support to participants and requires transparent communication and information sharing. The DAP begins the enrollment process by identifying potential participant candidates: generally, current clients of their office who do not have prior charges. Attorneys then meet with candidates to describe their program and assess participation interest as one potential pathway for their case. They share that successful program completion will result in a nolle prossed case outcome and record expungement, and emphasize the value of a clean record for future employment opportunities. DAP attorneys also clearly communicate that clients may still exercise their right to go to trial in their case, and that those who do not complete the program will have their case listed for trial. Clients may then make an informed decision to accept or refuse the program. Those who accept the program are enrolled as a cohort, with the size of the cohort depending on NL program capacity. They must complete a contract with the DAO at their enrollment that

¹ The notes on the enrollment process included in this section are based on informational interviews with DAP staff in February of 2023, and reflect practices current to that moment.

conveys program terms. The DAP specifically referenced the importance of this front-end communication as a foundation to establishing trust with vulnerable individuals, which is essential for promoting their success with the program.

Each YARD program session is six months in duration and involves delivery of various supports and services to holistically treat participants and their needs. To motivate and create changes in thinking patterns, NL's program includes a combination of group-based Human Animal Bond and Cognitive Behavioral Therapy in conjunction with individual-based counseling using Motivational Interviewing. Groups and therapy are provided by a licensed social worker in coordination with a certified recovery specialist (CRS). The program's core is based on models of Life Skills, Career Readiness, and Workforce Development Training. Participants receive individual case management, job development, and substance use referrals from the CRS. The program also includes dog training, animal care, and shelter engagement components – all of which are key for building trust, empathy, and responsibility, along with anger management skills and a team mentality. Finally, NL partners with various local employers, including Emancipet, PAWS, RevZilla, ACCT Philly, the city's open intake shelter, and Philly Auto and Parole for the weekly workforce development day.

Halfway through the program, all participants have a status hearing before the judge, with attendance from case management staff, to ensure their cases are progressing towards successful program completion. If indeed deemed to be on a pathway to success, the DAP will file recommendations for cases to be nolle prossed and for record expungement (a process which can take up to 18 months). If not deemed to be on a path to success, a case may get a trial date or the individual may receive more services and support to aid their journey towards successful program completion.

The YARD program design is a more “intensive” diversion program because it offers comprehensive services and requires a sizable time commitment from participants, which can be challenging for those with pre-existing employment. However, many components of the program offer unique benefits to participants – for example, the inclusion of food and public transit stipends that are understood as a large benefit to participants.

Overall, the YARD program has the potential to impact individual participants, their families, and the local community. YARD can reduce the magnitude of the criminal justice system by restricting the volume of incoming cases and reducing the level of local incarceration through early parole from facilities operated by the Philadelphia Department of Prisons (PDP) facilities. By diverting individuals from these experiences of justice contact, the program reduces exposure to the correlated harms of these experiences. Formal court processing is a disruptive event that can be challenging to navigate for individuals and their families (Kohler-Hausmann, 2018). Prisons and jails are unhealthy environments that are often characterized by unpredictability and instability (Porter, 2019). Spending time in jails and prisons can exacerbate social disadvantage (Wakefield & Uggen, 2010) and can increase recidivism (Loeffler & Nagin, 2021). A third of persons released from PDP are re-arrested within a year in Philadelphia, a high rate which the YARD program actively works to decrease by holistically treating individuals' needs and giving them the skills to avoid future criminal justice system contact.

Current Project

This report details one component of a broader project that examined the impact of the YARD program fielded to two cohorts (YARD 3: approximately January – July 2022, and YARD 4: approximately August – December 2022) in 2022 for participant outcomes following their program enrollment, with the goal of revealing how a diversion and early reentry program can affect violence. Specifically, this component examined recidivism outcomes of program participants using administrative data records. Dimensions of the analysis included an examination of participants' cases and outcomes of program completion and participants' recidivism. This report defines recidivism as a new arrest or a new court case filing logged within 12 or 18 months of program completion, with the exact measurement period dependent upon the participants' cohort: approximately 12 months for YARD 4, and approximately 18 months for YARD 3.

Data and Measures

To identify program processing and recidivism outcomes, this project uses data from two distinct sources: program records (source: NL) and court records (Source: DAO DATA Lab). Both datasets were combined at the individual level into a single dataset suitable for analysis. NL program records provide information on participants' cohort, lead docket associated with program enrollment, duration of their program enrollment, and completion status. Court record data provide information on participants' history of prior justice system involvement, detailed lead docket information, and recidivism – measured as new arrests or charges filed before or on January 15, 2024.

NL partners furnished a list of participants' names, birth dates, and lead dockets for the DATA Lab that was used to identify and extract associated arrest and court case records associated with participants and their lead case from their database. Of note, the DATA Lab's data includes past or future arrest and case history pulled from the Philadelphia court system, while other variables were pulled from Pennsylvania statewide system data.

Key Outcome: Recidivism

This analysis adopts two definitions of recidivism: *new arrest* and *new court case disposition* occurring within one year of their completion of the YARD program. Participants are considered to have had a new arrest if they had an arrest recorded by the Philadelphia Police in the 12-month period following their program completion. Participants have a new court case with a formal disposition if they have a new criminal court case docket number created in the DAO records system in the 12-month period following their program completion. Two additional variables – *time to new arrest* and *time to new disposition* – indicate the length of time (months) between program discharge and the associated recidivism event.

Program Outcome: Program Completion and Duration

The *Program Completed* variable indicates whether a participant successfully completed the YARD program or was removed according to NL records. For those who were removed, the *Removal Party* variable indicates the group who made the removal decision – the DAO or NL.

To quantify the program enrollment process, a series of variables measure the duration of the program enrollment and completion process using a combination of DATA Lab records and NL program records on participants' specific dates of program enrollment and discharge. *Arrest to Enrollment* indicates the amount of time passed (in years and months, with the latter as a % of 100%) between the focal arrest date and the program enrollment date. Similarly, *Arrest to Filing* computes time passed between arrest and filing of charges, *Filing to Enrollment* computes time between filing date and program enrollment date, and finally, *Enrollment to Completion* reflects the duration of program participation from start to finish.

Participants' Instant Case Information

A series of variables describe participants' instant case – the docket number associated with their enrollment into the YARD program. *Offenses in Lead Docket* counts the number of offenses formally recorded within the docket, as well as sub-categorizations that count offenses within specified types (*felony, misdemeanor, summary*). *Felony as lead charge* indicates whether the lead charge in the docket was classified as a felony. *Firearm charge on docket* is a binary variable that equals one if the lead docket included at least one of the four considered firearm offenses: VUFA, 6105, 6106, and 6018. *Total Firearm Charge Types* counts the number of considered firearm offenses charged in the participant's lead docket (each occurrence of each category is worth 1; maximum value is 4).

Case Disposition

Case Disposition, recorded in the lead docket, indicates the formal outcome of the case entered into the court record. Categories include: Guilty, Guilty Plea, Nolo Prossed, Nolo Contendere, and Proceed to Court.

Prior Criminal Justice System Involvement

To check participants' prior system involvement, this analysis includes data on whether participants had a *Prior Arrest* and *Prior Conviction*. These experiences were captured if a participant had a distinct arrest or a docket number recorded prior to the docket associated with their enrollment – in other words, an arrest or court case preceding their enrollment that was not associated with the case that led to their enrollment. This analysis includes a measure of whether a participant had any prior arrest or case, and for those that did, counts of the number of prior arrests and cases.

Demographics

Participants' demographic information is drawn from court records. *Race* is classified as Black or white. *Sex* is classified as Male or Female. *Age* at various points in the criminal justice and program process is determined by computing differences between their date of birth (NL records) and recorded dates of arrest, case filing, program orientation, and recidivism event. Finally, one variable indicates whether a participant was enrolled in YARD 3 or YARD 4.

Methods

Univariate and bivariate analyses are used to examine associations between participants' prior system involvement and instant case information (i.e., charges) and outcomes of program completion and recidivism. Importantly, analyses are limited to the sample of program participants and do not include a comparison group of similarly situated non-participants. While the research team attempted to work with partners to identify a suitable comparison group, the uniqueness of the YARD program relative to other diversion programs made it difficult to identify a suitable group of non-participants that could effectively function as an “apples to apples” comparison – the conventional benchmark for program evaluation design. Further, the small sample size precludes the possibility of multivariable analyses, such as regression modeling. Accordingly, these analyses provide important preliminary findings on key program outcomes suitable for future research that utilizes a comparison group and multivariable analyses.

Results

Participant Demographics, Case Information, and Prior System Involvement

Table 1 displays statistics that describe the YARD program population enrolled in Cohorts 3 and 4. Participants are overwhelmingly male (85%) and Black (88%). They are, on average, about 22 years old when they are arrested for the case that initiates their program enrollment. Participants had an average of 9 offenses (median = 3) listed in their lead docket, with every single participant facing a felony as their lead charge. The vast majority – about 85% – of participants had at least one firearm offense on their lead docket. Participants had an average of about 2.5 different firearm charge types on their record (out of 4), indicating that there were multiple related charges within these cases. These statistics indicate that enrolled participants had backgrounds in alignment with program eligibility and focus areas – such as age and firearm charges. This finding is important when placed in context, as these cohorts were some of the first to experience these adjusted focus areas implemented as a part of broader strategies to reduce gun violence in Philadelphia.

Table 1: YARD Participant Demographic and Case Information.

<u>Variable</u>	<u>Average or %</u>	<u>Count</u>	<u>SD</u>	<u>Min</u>	<u>Max</u>
Race - Black	88.2%	30	0.33	0.0	1.0
Race - White	11.8%	4			
Gender - Male	85.3%	29	0.36	0.0	1.0
Gender - Female	14.7%	5			
Age at Arrest	21.83	--	3.74	18.18	38.63
Age at Filing	22.10	--	3.84	18.25	39.61
Age at Orientation	23.11	--	4.28	18.75	40.57
Offenses in Lead Docket	9.09	--	20.71	2.00	93.00
Felony Offenses	4.35	--	10.10	1.00	60.00
Misdemeanor Offenses	5.03	--	15.11	0.00	90.00
Summary Offenses	0.50	--	1.31	0.00	6.00
Felony as Lead Charge	100.0%	34			
Firearm Charge on Docket	85.3%	29	0.36	0.00	1.00
Total Firearm Charge Types	2.59	--	1.18	0.00	4.00
Prior Arrest (Any)	14.7%	5	0.36	0.00	1.00
Number of Prior Arrests	1.20	--	0.45	1.00	2.00
Prior Charges (Any)	8.8%	3	0.29	0.00	1.00
Number of Prior Charges	1.33	--	0.58	1.00	2.00
Prior Conviction (Any)	8.8%	3	0.29	0.00	1.00
Number of Prior Convictions	3.00	--	0.00	1.00	1.00
YARD 3 Cohort	52.9%	18			
YARD 4 Cohort	47.1%	16			
Participants		34			

Note: *SD* = standard deviation.

Table 2 indicates whether participants had prior justice system involvement considered for the entire sample and across enrollment status (early parole, or diversion). In the full sample, 8 participants (about 24%) had any prior arrest, while fewer (4) had prior charges or a prior conviction (12%, respectively). Prior system contact is universal amongst participants entering the program through the early parole pathway: all three early parole participants had a prior arrest, most had prior charges, and all had a prior conviction. Just over 15% of the 31 participants enrolled via diversion had a prior arrest. However, deeper system involvement (charges and/or conviction) is very rare for this participant group, with only one participant having a prior charge or conviction. The rareness of prior charges and convictions is in alignment with the stated focus on recruiting participants who are facing formal charges for the first time. It provides complementary reassurances to the arrested proportion of the diversion sample by indicating that the vast majority of those with a prior arrest did not have additional system contact. Accordingly, they are being diverted following their initial formal contact with the system. A high proportion of arrests is not surprising for the cohort given that many come from highly policed

neighborhoods in Philadelphia, which increases their likelihood of police engagements and arrests in places of high surveillance. Additional consideration of the special circumstances through which the individual with prior charges and a conviction was enrolled in the program may be warranted to assess potentially extenuating circumstances that superseded stated eligibility and ensures future alignment.

Table 2: Participants' Prior Justice System Involvement

	<u>All Participants</u>		<u>Early Parole</u>		<u>Diversion</u>	
<u>Variable</u>	<u>Average or %</u>	<u>Count</u>	<u>Average or %</u>	<u>Count</u>	<u>Average or %</u>	<u>Count</u>
Prior Arrest (Any)	23.5%	8	100.0%	3.0	16.1%	5.0
Number of Prior Arrests	1.2		2.3		1.0	
Prior Charges (Any)	11.8%	4	66.7%	2.0	3.2%	1.0
Number of Prior Charges	1.3		2.0		1.0	
Prior Conviction (Any)	11.8%	4	100.0%	3.0	3.2%	1.0
Number of Prior Convictions	3.0		2.0		1.0	
Total Participants		34		3		31

Program Completion and Duration

Statistics in

Table 3 describe program completion and duration information. At the top, most enrolled participants – just over 80% - successfully complete and graduate from the YARD program. Conversely, about 18% of participants were removed, resulting in their non-completion of the program. Most often, the District Attorney’s Office of Philadelphia (DAO) is the removal party.

In separate analyses not shown, rates of completion were compared across key identifiers of participants’ backgrounds (race, gender, age) and their case information. One interesting result was that participants who were removed from the program were approximately 1.5 years younger, on average, than participants who did complete the program. This age difference was not significantly different ($p=.43$), but does suggest that age – and all entailed with age – may be an important factor in whether participants can successfully navigate the various program components. Further, participants who did not complete the program had an average 20.3 charges on their lead case, while participants who did complete the program had an average of 6.7 charges – a difference of about 13.5 added charges. While not statistically significant ($p=.15$), this difference may encapsulate underlying differences in participants’ risk level and capacity to maintain good standing with the program that works to present substantial challenges to meeting all conditions of their agreement.

Table 3: Program Completion and Duration Statistics

<u>Variable</u>	<u>Average or %</u>	<u>Count</u>	<u>SD</u>	<u>Minimum</u>	<u>Maximum</u>
Program Completed	82.4%	28	0.39	0.00	1.00
Removed from Program	17.7%	6			
Removal Party – DAO	66.7%	4			
Removal Party – NL	33.3%	2			
Total Participants	34				
<i>For those Completing Program in Full:</i>					
Arrest to Enrollment Time	11.84	27	6.49	2.24	24.30
Arrest to Filing Time	3.23	27	3.72	0.49	12.95
Filing to Enrollment Time	8.61	27	4.43	1.64	16.04
Enrollment to Discharge Time	5.41	27	0.63	4.70	6.54
Total Participants	27				

Note: All duration variables are included as months. Duration variables exclude one participant who had a particularly extended period before program orientation and enrollment.

The bottom half of the table describes the amount of time between key decision points in the program entry and completion progress for those who completed the program. On average, a participant is considered enrolled in YARD just about a full year (11.8 months) after their arrest date. This large time window is driven by the time between filing and program enrollment, which takes an average of 8.5 months – far longer than that between arrest and filing, which takes about 3 months. In other words, participants experience significant wait times of over one year to become enrolled in the program once they enter the criminal justice system. Participants take an average of about 5.5 months to complete the program, a duration far shorter than what it takes to get into the program.

Conversations with NL staff indicate that these waits are driven by program capacity constraints – specifically, that NL can run a maximum of two YARD cohorts per year. While the impacts of this waiting period cannot be identified with these data, the length of the waiting period nonetheless indicates a significant period of time until individuals can enroll in and receive services from the program. The waiting period to enter the program is nearly triple the average length of enrollment in the program. The costs and benefits incurred by this waiting period for all involved individuals and stakeholders could provide more evidence for supporting changes that can reduce the waiting period.

Case Disposition Outcomes

Table 4: Participants' Formally Recorded Case Outcomes.

<u>Case Disposition</u>	All Participants		Completed Participants		Removed Participants	
	<u>Count</u>	<u>Percent</u>	<u>Count</u>	<u>Percent</u>	<u>Count</u>	<u>Percent</u>
Guilty	1	2.9%	--	--	1	16.7%
Guilty Plea	8	23.5%	4	14.3%	4	66.7%
Nolle Prossed	23	67.7%	23	82.1%	--	--
Nolo Contendere	1	2.9%	1	3.6%	--	--
Proceed to Court	1	2.9%	--	--	1	16.7%
Total	34		28		6	

Statistics presented in Table 4 indicate the outcome recorded by the court in participants' lead dockets (i.e., the docket that precipitated their program enrollment) for all participants and across their completion status. For all participants, the most common outcome across is for their case to be nolle prossed. This outcome means that the participant's case is eligible for expungement, meeting a key objective of the diversion program. Orders for expungement are typically placed by the Public Defender's office a set time after their YARD graduation and date of nolle prosee disposition entry. Accordingly, the majority of participants are receiving case outcomes that render them eligible for a key benefit of diversion programs – the promise of record clearance conditioned upon successful program completion without any alleged lawbreaking behavior in the interim. About a quarter of participants enter a guilty plea in their case, while a handful receive dispositions of guilt (post-trial), nolo contendere (no admittance of guilt but acceptance of punishment), and to proceed to court.

Relative to the full sample, a larger proportion of program-completing participants – 82% - receive a nolle prossed disposition, making them eligible for expungement. A small portion, slightly less than 15%, enter a guilty plea, while one entered a nolo contendere plea. Accordingly, most program completers will be eligible for expungement. The data do not contain intermediary information to determine how or why successful completion participants enter a guilty plea for their focal case, which is an important area for additional investigation.

Finally, participants who did not successfully complete the program are highly likely to enter a guilty plea in their lead case, with the remaining two participants being found guilty and proceeding to court in their cases. No non-completing participants entered a nolle prossed plea, indicating that program success is essential for gaining the conditional benefits of expungement. The ability to prevent a record is likely a strong incentive for participants to be successful because of the benefits of a clear record for housing and employment searches.

Recidivism

The final set of results considers recidivism outcomes for program participants. This analysis defines recidivism as a new arrest or new court case recorded in the 12-month period following a participant's program completion date. This definition is adopted to reflect behaviors observed and formally recorded for individuals with respect to their program enrollment – in other words, for individuals who have received some component of NL's intervention.²

Statistics on recidivism events are displayed in Table 5. Starting with arrest, about 6% of participants – 2 of 34 – had a new arrest within a year of the date of their completion of YARD. All re-arrested participants had one arrest only. The same proportion of participants (about 6%) had a new case with a formally recorded disposition within a year of their date of completion of YARD. Similar to new arrests, participants experienced a single new case with a disposition. In results not shown, recidivism events were recorded only for participants who successfully completed the program; no new arrests or case dispositions were observed for those who were removed from the program. While not a perfect comparison, it is noteworthy that this diversion program-specific recidivism rate is less than half of the recidivism rate for individuals released from PDP custody in Philadelphia where about 33% are re-arrested within one year.

Table 5: Recidivism Rates

	<u>Count</u>	<u>Average or %</u>	<u>SD</u>	<u>Minimum</u>	<u>Maximum</u>
New Arrest	2	5.9%	0.2	0.0	1.0
Number of New Arrests		1.0	--	1.0	1.0
Discharge to New Arrest Time		6.5	3.1	4.3	8.7
New Case with Disposition	2	5.9%	0.2	0.0	1.0
Number of New Dispositions		1.0	--	0.0	1.0
Discharge to New Disposition Time		8.6	3.0	6.5	10.7
Total Participants	34				

Note: SD = Standard Deviation. Time variables are in months.

Recidivism events occur a considerable time after participants have been discharged from the program. The average time between discharge to new arrest is six and a half months months, with an additional two months transpiring between arrest and case disposition. While a small number of events, the timing of these rearrest events diverges from prior research that demonstrates the risk of recidivism is highest during the first 3-6 months following system contact (Alper, Durose, & Markman, 2018). This divergence is suggestive that the YARD program provides participants with the supports they need to avoid the justice system during the riskiest period for additional contact, but other factors may intervene in the longer term that affect this likelihood. Future data collection that investigates the reasons surrounding

² There were two participants who experienced arrest and case dispositions not connected with the lead docket that initiated their NL enrollment that were recorded prior to the participant's enrollment date. These events were not considered as recidivism events for the purposes of this analysis because they did not meet the adopted definitional criteria.

participants' rearrest may provide valuable insight into programmatic changes that could provide longer-term supports to their ability to avoid institutional contact.

Key Findings and Recommendations

The results of this analysis provide data-driven insight into program outcomes for two cohorts of YARD participants enrolled in the program in 2022. They reveal that the program is indeed enrolling the targeted population that is at high risk of firearm-related activity. Further, the majority of participants successfully complete the program and receive a case outcome that clears their record, fulfilling a core objective of diversion. Finally, recidivism events in the form of re-arrest and new case disposition are uncommon and often happen over 6 months following program completion.

Accordingly, the following recommendations, presented in order in which they appear in the preceding section, are indicated by the data:

1. Affirmation of serving target groups and objectives:
 - a. The profile of participants indicates that the program is indeed serving the target population at elevated risk of firearm-related violence because they are disproportionately facing firearm-related charges, are young, and have a Black racial identity.
2. Continue eligibility focus on first time charges:
 - a. The unexpectedly high level of prior arrests among diversion participants may be explained by the programmatic emphasis on serving individuals from highly disadvantaged neighborhoods that often face high levels of police surveillance activity.
 - b. Because many of these arrests do not lead to formal charges, the continued emphasis on first-time charges (and not arrests) is warranted.
3. Support for younger participants:
 - a. Although not statistically significant, participants who did not successfully complete the program were younger than those that did.
 - b. Programmatic changes may provide additional individualized supports to participants on the younger side of the age eligibility range so that they are empowered to effectively meet all program requirements and conditions.
4. Charge volume in eligibility and programming:
 - a. Participants who did not successfully complete the program had a substantially higher volume of charges.
 - b. These participants may need additional programming supports or additional considerations in the enrollment process to support any underlying unique circumstances related to the volume of levied charges and their likelihood of program success.
5. Reducing time to program enrollment:

- a. Participants face considerable stretches of time between the date of their case filing and their entry into the program.
 - b. Stakeholders may collaboratively consider changes that can reduce this duration so that participants are more quickly enrolled in the program and start receiving its supports.
 - c. Support for additional resources to increase the number of cohorts occurring within a year may be further warranted to meet demand for YARD program services while also reducing time to enrollment.
- 6. High rate of attainment of nolle prossed case dispositions:
 - a. The commonality of nolle prossed outcomes, particularly amongst participants successfully completing the program (82%), indicates a high level of attainment of key program objectives.
 - b. Perhaps concerningly, 4 successful completers entered guilty pleas. These cases merit additional consideration with information unavailable in this analysis to better understand the circumstances around these pleas, with the goal of potentially identifying whether programmatic changes or supports can increase the proportion of nolle prossed dispositions and reduce guilty pleas.
- 7. Low recidivism rate:
 - a. Only 5.9% of participants experience a new arrest or new case with a disposition in the year following their completion of the YARD program. This proportion is far lower than the one year re-arrest rate for individuals released from PDP custody – an imperfect comparison that provides a rough benchmark for assessing program outcomes.
 - b. However, recidivism events are exclusively observed amongst those who successfully complete the program and typically occur well after program completion.
 - i. Explanations for this gap between the program graduation and future criminal justice system contact should be explored to better understand the factors driving individuals’ re-arrest and re-involvement with the courts.
 - ii. This information may inform future programming decisions that include different components to best address participants’ needs and avoid recidivism in both the short-term and the long-term.

Future Considerations

This report provides foundational data-driven insights into the YARD program that present opportunities for future investigation and research that can inform future decision making for the program. Importantly, analyses in this report should be interpreted as preliminary and descriptive in nature, and not implying any causality about program effectiveness. Because this project did not include a comparison sample, many of the results – including the recidivism outcomes – cannot be interpreted within a relative context.

Future research can better speak to program effectiveness through strengthened research designs that build on the foundational work of this analysis, pending feasibility and approval from NL

staff, stakeholders, and program partners. Specific areas for future exploration include the use of a comparison sample, either through a matching, weighting, or randomized selection process, to provide a reference point for calculated outcomes. Identifying a group of individuals that are similarly situated to YARD participants with respect to their backgrounds, instant case characteristics, and diversionary pathways – but differ in their participation in the program – would aid in making stronger inferences about the program’s impact on recidivism outcomes. Further, information on participant ethnicity and the types of recorded dispositions in new cases can generate more in-depth understanding. Finally, consideration of the circumstances around comparatively delayed recidivism events may yield insights that can improve programmatic offerings and, in turn, improve participant outcomes.

References

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